

25AVCV01279 25AVCV01279

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Case Number: 25AVCV01279 Hearing Date: August 11, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

CHRISTOPHER BUI, an individual, and RICHARD LAM, an individual,

Plaintiffs,

v.

HRANT DANAKIAN, an individual, and DOES 1 through 10,

Defendants.

Case Number 25AVCV01279

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 11, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a breach of contract case arising from Defendant Hrant Danakian's (Defendant) alleged default on his contractual obligations to pay Plaintiffs Christopher Bui (Bui) and Richard Lam (Lam) (together Plaintiffs) for the purchase of their membership interests in Forte Health, LLC. Presently, Defendant moves for reconsideration of the Court's April 14, 2026 Order granting Plaintiffs' motion to compel discovery.

On September 30, 2025, Plaintiffs filed their complaint against Defendant and DOES 1 through 10, asserting three causes of action for (1) Breach of Contract (Promissory Notes), (2) Breach of Contract (Purchase Agreements), and (3) Judicial Foreclosure of Security Interest.

Specifically, Plaintiffs allege that on May 1, 2023, Defendant entered into two Membership Interest Purchase Agreements (Agreements) with Bui and Lam, in which Plaintiffs agreed to sell, and Defendant agreed to purchase, Bui's 25% membership interest and Lam's 25% membership interest in Forte Health, LLC (Forte). (Compl., ¶ 8.) Defendant then executed and delivered to Plaintiffs two Security Promissory Notes (Notes) dated May 1, 2023, each in the principal amount of \$125,000.00. (Compl., ¶ 9.) To secure Defendant's obligations under the Notes, Defendant entered into a Security Agreement dated May 1, 2023, with Plaintiffs named as the secured party. (Compl., ¶ 10.) Under the Security Agreement, Defendant granted Plaintiffs a continuing security interest in all of Defendant's right, title, and interest in his 50% membership interest in RCH Holdings, LLC (RCH), as well as Defendant's share of RCH's real estate holdings, dividends on pledged securities, and products and proceeds of pledged securities. (Compl., ¶ 11.) Plaintiffs allege they have performed all conditions, covenants, and promises required under the terms of the Agreements, Notes, and Security Agreement, including the transfer of their membership interests in Forte to Defendant, but that Defendant has breached the terms of the Agreements and Notes by failing to make the required monthly payments since December 1, 2024. (Compl., ¶¶ 12-13.)

On November 24, 2025, Plaintiffs dismissed DOES 1 through 10 with prejudice.

On December 2, 2025, Defendant filed his answer, asserting 13 affirmative defenses.

On February 23, 2026, Plaintiffs filed a motion to compel Defendant's initial responses to set one of Special Interrogatories, Form Interrogatories, and Requests for Production propounded on Defendant.

On April 14, 2026, the Court granted Plaintiffs' motion to compel initial discovery responses with sanctions.

On April 24, 2026, Defendant filed the present motion for reconsideration of the April 14, 2026 Order granting Plaintiffs' motion to compel initial discovery responses.

On July 21, 2026, the Court granted in part Plaintiffs' motion to compel further responses to the first set of Special Interrogatories, Form Interrogatories, and Requests for Production and ordered sanctions in the amount of \$3,312.50.

On July 29, 2026, Plaintiffs filed their opposition.

On August 3, 2026, Defendant filed his reply.

II. Legal Standard

Standard for Reconsideration – When an application for an order has been made to a judge and granted, any party affected by the order may move the court for reconsideration of the matter and modify, amend, or revoke the prior order. (Code Civ.

Proc., § 1008, subd. (a).)

A party may make such a motion if the motion is: (1) brought before the same judge or court that make the order sought to be reconsidered; (2) made within 10 days after service upon the party of the notice of entry of the order; (3) based on new or different facts, circumstances or law than those before the court at the time of the original ruling; and (4) supported by a declaration stating what application was made before, when and to what judge, what order or decisions were made, and the new or different facts, circumstances or law claimed to exist. (Code Civ. Proc. § 1008, subd. (a).)

The moving party must present new facts, circumstances, or law in order to grant a motion for reconsideration. (See Code Civ. Proc., § 1008, subd. (a); see also *Mink v. Superior Court* (1992) 2 Cal.App.4th 1338, 1342.) Further, “the party seeking reconsideration must provide not just new evidence or different facts, but a satisfactory explanation for the failure to produce it at an earlier time.” (*Glade v. Glade* (1995) 38 Cal.App.4th 1441, 1457.) The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.)

III. Discussion

Application – Defendant moves for reconsideration of the Court’s April 14, 2026 Order granting Plaintiffs’ motion to compel discovery responses and awarding \$2,872.50 in monetary sanctions pursuant to Code of Civil Procedure section 1008, subdivision (a) on the grounds that new and different facts and circumstances justify reconsideration. (Motion, p. 2:5-10.) Defendant argues that on April 15, 2026, Plaintiffs reserved a hearing on, and thereafter filed, a motion to compel further responses to the same discovery, which presupposes that initial responses had been served, and Plaintiffs’ own filing confirms what Defendant previously advised the Court, which is that substantive, written responses to all three sets of discovery were served on February 23, 2026, with verifications on March 3, 2026, rendering the motion to compel responses underlying the April 14th Order moot. (Motion, p. 2:10-19.)

The timeline of discovery leading up to this motion is as follows:

On January 6, 2026, Plaintiffs served their first sets of Form Interrogatories, Special Interrogatories, and Requests for Production. (Motion, p. 4:18-19.) On February 22, 2026, Plaintiffs served their motion to compel, which was subsequently filed on February 23rd. (Motion, p. 4:19-21.) On February 23, 2026, Defendant served written responses to all three sets of discovery on Plaintiff’s counsel by email. (Motion, p. 4:22-23.) As these responses were unverified, they were legally invalid and tantamount to no response at all. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 487.) Defendant served verifications to each set on March 3, 2026. (Motion, p. 4:24-25.) Defense counsel filed a declaration in opposition to the motion to compel on April 13, 2026, one day before the hearing on the motion, advising the Court that the motion was moot because responses had been served, with copies of the responses attached as exhibits. (Motion, p. 4:26-5:1.) Nonetheless, the Court granted the motion to compel on April 14th and awarded monetary sanctions for Defendant’s failure to timely respond to discovery in the amount of \$2,872.50. (Motion, p. 5:1-3.) On April 15, 2026, Plaintiffs reserved the present hearing date for a motion to compel further responses to the same three sets of discovery, which states that Defendant provided responses on the dates specified above. (Motion, p. 5:4-9.)

Defendant argues that the motion to compel was brought under Code of Civil Procedure section 2030.290 and 2031.300, which authorize a motion to compel only when a party has failed to serve a response, while a motion to compel further responses under sections 2030.300 and 2031.310 presupposes that responses have been served, and the two motions are mutually exclusive. (Motion, p. 5:22-27.) Thus, Defendant argues Plaintiff contradictorily claimed both that the responses had not been served at all, and that responses were served but were not sufficient. (Motion, p. 6:5-9.) Defendant relies on *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390 in support of his contention that the motion to compel initial responses was moot on April 14th when the motion was granted.

In opposition, Plaintiffs argue that Defendant offers no new facts or evidence in support of the motion, failed to oppose the motion to compel, already raised the mootness issue prior to the April 14, 2026 hearing, and misrepresents *Sinaiko*, which holds exactly the opposite of what Defendant claims. (Opp., p. 2:4-17.)

On reply, Defendant argues that the Court's July 21, 2026 Order granting Plaintiffs' motion to compel further responses constitutes a new circumstance which could not have been presented on April 14, 2026, supersedes the April 14, 2026 Order, and adjudicated that Defendant's responses to Special Interrogatories Nos. 4 and 6 and Form Interrogatory No. 50.4 were code-compliant, a determination which cannot coexist with an order compelling responses to the same requests on the premise that none had been served. (Reply, p. 2:1-20.)

As a preliminary matter, the Court disregards Defendant's argument that the Court's July 21, 2026 Order presents a new circumstance or facts on which to grant this motion. First, Defendant may not raise a new argument on reply or submit new evidence when the motion itself was based on separate circumstances. (See *Reichardt v. Hoffman* (1997) 52 Cal.App.4th 754, 764.) Second, even if the Court were to consider this argument, for the same reasons as discussed below, the argument is unavailing.

Here, there are no new facts offered by Defendant. The Court was aware, as Defendant himself admits in his motion, that Defendant had served untimely and unverified responses on February 23, 2026, and served verifications on March 3, 2026. Not only did Defendant raise this argument at the hearing, but Plaintiffs also expressly admitted these facts in their reply brief, filed on April 13, 2026. (See Reply, p. 2:10-11.) Thus, Plaintiffs' admission of these facts in the subsequent motion to compel further responses is not a new circumstance or fact which did not exist at the time of the hearing. Defendant raised the mootness argument prior to and at the hearing on the motion to compel. The Court considered this argument and rejected it. Defendant has offered no new facts or evidence on which this ruling should be abandoned.

Furthermore, contrary to Defendant's argument, *Sinaiko* did not hold anywhere in the opinion that a motion to compel is moot upon untimely service of discovery responses after such a motion is filed. On the contrary, *Sinaiko* expressly authorizes the Court to hear a motion to compel initial responses even where a party filed untimely responses after the motion to compel was filed but before the hearing. The Court held that to accept that a Court has no discretion to hear and rule on a motion to compel initial responses after untimely responses are provided "would remove an important incentive for parties to respond to discovery in a timely fashion" and "a party to whom interrogatories were directed could wait until the hearing on a section 2030.290 motion was imminent, then serve a set of evasive and incomplete responses, and thereby unilaterally deprive the trial court of authority to hear the motion." (*Sinaiko*, supra, 148 Cal.App.4th at 408.) Therefore, "once a party has failed to serve timely [discovery] responses, the trial court has the authority to hear a propounding party's motion to compel responses... regardless of whether a party serves an untimely response." (*Ibid.*)

The County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 echoed *Sinaiko*'s reasoning in holding the same as to motions to compel further responses, stating that to adopt such an "interpretation of the discovery act—that a party opposing a motion to compel further responses may unilaterally divest the court of authority to rule on the motion by serving a further response in the interim—would permit a party faced with a motion to compel to delay its adjudication indefinitely by successive supplemental but inadequate responses, each prompting a further motion to compel, each of which in turn would be defeated by piecemeal supplementation."

Defendant goes on to argue that *Sinaiko* holds that while a Court is not divested of authority to hear a motion to compel when a party serves untimely responses, whether the Court should proceed with such a motion rests in the Court's discretion, and contends that the April 14, 2026 Order should not remain in place now that the July 21, 2026 Order has fully addressed the concerns raised in *Sinaiko*. (Reply, p. 5:5-12.) Defendant states that the "protection *Sinaiko* preserves has been vindicated through the July 21 Order. Nothing remains for the April 14 Order to accomplish." (Reply, p. 5:11-12.)

The Court rejects this argument outright. Defendant failed to provide timely discovery responses. Plaintiffs' motion to compel was granted and monetary sanctions issued, as warranted and permitted by law, for Defendant's failure to abide by the lawful discovery process in serving initial responses. Plaintiffs were then obligated to file a secondary motion to compel further discovery responses due to Defendant's evasive, incomplete, and non-compliant responses. That motion was also granted in large part, and monetary sanctions awarded, as warranted and permitted by law. The Court fails to see any inconsistency

between these Orders, and fails to see how the July 21, 2026 Order addresses precisely the same objective as the April 14th Order, as both motions were brought under separate statutes and with different objectives, as Defendant notes in his motion. Rather, these Orders demonstrate the exact concern addressed by Sinaiko, which is that a party serving evasive responses on the eve of a hearing on a motion to compel may be engaging in gamesmanship and attempting to avoid the effectiveness and application of the discovery statutes by serving untimely, insufficient discovery responses and shifting the burden to the propounding party and avoiding the consequences of failure to abide by discovery deadlines. The Court finds that both the April 14, 2026 Order and the July 21st Order are valid and warranted, and sees no reason to abandon either. Additionally, as stated above, Defendant has failed to offer any new evidence or argument not already raised prior to and at the hearing, as Defendant's arguments relating to the April 15th reservation, the filing of the motion to compel further responses, and the Court's July 21st Order all appear to be grounded on admission of Defendant's service of discovery responses prior to April 14th.

Furthermore, even where a party provides untimely responses after a motion to compel has been filed, the Court may still award monetary sanctions. (Cal. Rules of Court, rule 3.1348(a) ["The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though...the requested discovery was provided to the moving party after the motion was filed."].) Even were the Court to entertain Defendant's arguments and overturn its Order granting the motion to compel, there are no new grounds on which this Court finds it warranted to abandon its Order mandating monetary sanctions be paid for failure to comply with timely initial discovery responses.

Therefore, Defendant's motion for reconsideration is DENIED. The Court's April 14, 2026 Order will stand, as will its July 21, 2026 Order compelling further responses.

Plaintiffs' request for an increase in monetary sanctions under the July 21, 2026 Order is DENIED.

IV. Conclusion

Defendant Hrant Danakian's Motion for Reconsideration is DENIED.